

Uma Shankar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 October 2025 · WRIT - C No. 30561 of 2025 · **Writ disposed; Assessing Officer to decide objection under clause 6.8 after hearing.**

HEADNOTE

Where electricity assessment was concluded ex parte, the writ was disposed by relegating the consumer to Clause 6.8: on deposit of Rs. 1,75,000 and filing of an objection, the Assessing Officer must decide by a reasoned order after confronting the consumer with adverse material and granting personal hearing; non-compliance revives the recovery.

FACTUAL SUMMARY

The petitioner challenged a recovery citation dated 26 June 2025 seeking Rs. 7,26,244 towards electricity dues. Counsel for the distribution licensee, on written instructions retained on record, disclosed that both provisional and final assessments had been made on 11 November 2024 for that sum. Those pleadings and instructions showed that the entire assessment had been conducted and concluded ex parte against the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

ex-parte assessment — hearing before Assessing Officer

HOLDING

Where provisional and final assessment of electricity dues were conducted and concluded ex parte, no useful purpose is served by keeping the writ pending. Subject to the consumer depositing Rs. 1,75,000 towards the disputed demand within one month and filing an application within a further week, the Assessing Officer shall decide the objection by a reasoned speaking order under Clause 6.8, after confronting the consumer with all adverse material and granting personal hearing, preferably within two months; non-compliance revives the recovery from that stage. ¶ 4-7

PRINCIPLE TAGS

opportunity-before-final-assessment Where electricity assessment was concluded ex parte, the writ was disposed by relegating the consumer to Clause 6.8: on deposit of Rs.. ¶ 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ASSESSMENT AND RECOVERY CITATION OF RS. 7,26,244

Left to the Assessing Officer under clause 6.8. ¶ 5-6